

# HOUSE . . . . . No. 368

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## The Commonwealth of Massachusetts

PRESENTED BY:

*Christopher Richard Flanagan*

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act amending Chapter 236 of the Special Acts of 2014.

PETITION OF:

| NAME:                               | DISTRICT/ADDRESS:     | DATE ADDED:      |
|-------------------------------------|-----------------------|------------------|
| <i>Christopher Richard Flanagan</i> | <i>1st Barnstable</i> | <i>1/15/2025</i> |

# HOUSE . . . . . No. 368

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By Representative Flanagan of Dennis, a petition (accompanied by bill, House, No. 368) of Christopher Richard Flanagan relative to the representation of the Board of Registration of Cosmetology and Barbering. Consumer Protection and Professional Licensure.

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[SIMILAR MATTER FILED IN PREVIOUS SESSION  
SEE HOUSE, NO. 3866 OF 2023-2024.]

## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act amending Chapter 236 of the Special Acts of 2014.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           Chapter 13 of the General Laws is hereby amended by striking out section 42 and  
2           inserting in place thereof the following section:-

3           Section 42. There shall be a board of registration of cosmetology and barbering to consist  
4           of 9 members who shall be appointed by the governor, 1 of whom shall be designated as  
5           chairperson by a majority vote of the board. Members shall be appointed for terms of 3 years;  
6           provided, however, that any person designated to fill a vacancy shall be appointed only for the  
7           remainder of the unexpired term of the member so replaced. Upon the expiration of a term of  
8           office, a board member may continue to serve until a successor has been appointed and qualified.

9           The governor may remove the chairperson or other member of the board for neglect of  
10 duty or malfeasance or upon a conviction of a felony or crime of moral turpitude. No board  
11 member shall participate in any matter before the board in which the member has a pecuniary  
12 interest, personal bias or other conflict.

13           The governor shall appoint members to the board from among candidates who meet the  
14 following qualifications:- (i) 8 members shall be licensees of the board, in compliance with  
15 sections 87T to 87KK, inclusive, of chapter 112, 1 of whom shall own a licensed cosmetology  
16 school or post-secondary institution for at least 5 years, 1 of whom shall be a cosmetologist for at  
17 least 5 years, 1 of whom shall be a licensed manicurist for at least 5 years, 1 of whom shall be a  
18 licensed vocational educator from the public sector who has taught cosmetology or barbering for  
19 at least 5 years, 2 of whom shall be licensed master barbers for at least 5 years, 1 of whom shall  
20 be a licensed electrologist for at least 5 years and 1 of whom shall be a licensed aesthetician for  
21 at least 5 years; and (ii) 1 member shall be a representative of the general public and shall have  
22 no direct affiliation with the practice of cosmetology, barbering or electrology.